

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**
Office of City Clerk

July 26, 2010

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Ms. Ash, Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Spiker moved to approve Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on July 12, 2010. Motion (per Consent Agenda) carried.

[CA] Minutes from Vouchers Meeting of the Governing Body on July 19, 2010. Motion (per Consent Agenda) carried.

Mr. Valdez and Mr. Collins each declared a conflict of interest (business interest in vouchers payable to radio station KYOY and Bicycle Station, Inc. respectively). Mr. Valdez vacated Council Chambers. Mr. Brown moved to approve payment of vouchers as presented, seconded by Mr. Spiker. Upon inquiry, City Treasurer Barb Dorr reviewed information available on a voucher payable to Alco Mobile Storage LLC (\$150.00), rent for temporary storage unit at Depot Plaza, and Mayor Kaysen advised information would be provided relative to completion of the Depot Plaza Operations building and termination of storage rentals. Upon inquiry regarding a voucher payable to American Medical Response (\$522.50), ambulance services, Todd Feezer, Asst. Director, Parks and Recreation Dept., expressed his belief that the contract agreement with the event organizer for use of the Taco John's Events Center for the MMA Fight required an on-site ambulance during the event, noting that contract (lease of the facility) revenue off-sets the expense. Motion carried. Voting "yes" – all members of the governing body present in Council Chambers with the exception of Mr. Collins, who did not vote. Following announcement of the vote, Mr. Valdez returned to Council Chambers.

Mayor Kaysen opened a public hearing to receive comments and input on the proposed trade of real properties owned by the City of Cheyenne, being two parcels of land which comprised the former Civitan Park, the north half of the right-of-way for Civitan Place, a platted but unbuilt street, and the right-of-way for a platted, but unbuilt, alley, all of which are located in Arp Addition, 5th Filing, generally located south of West Leisher Road between Cribbon Avenue and Dey Avenue, and all of which were vacated by the Governing Body of the City of Cheyenne pursuant to

Ordinance No. 3900, approved June 28, 2010, and together consisting of approximately 45,519 square feet +/- (estimated value of \$80,000.00), to Laramie County School District No. 1 for real property owned by Laramie County School District No. 1 described as a strip of land approximately 126 ft. wide from east to west and approximately 398 ft. long from north to south, consisting of approximately 50,148 square feet +/- (estimated value of \$80,000.00), situated in the eastern part of Sunrise Elementary School site within Lot 1, Block 1, Sun Valley School Addition, Cheyenne, WY generally located on the north side of East 12th St, adjacent to Sun Valley Park. Todd Feezer, Asst. Director, Parks and Recreation Dept., referenced two maps he displayed reflecting the parcels involved in the property trade, which will benefit the new Goins Elementary school building and new park land for the City. There being no further comments or input and purpose of the hearing having been met, Mayor Kaysen closed the hearing.

“An Ordinance repealing Chapter 5.72, Public Transport, in its entirety and re-creating Chapter 5.72, Public Transportation, of Title 5, Business Licenses and Regulations, of the Cheyenne City Code.” Joe Elkins, owner, B.C. Cab, expressed concerns with several sections of the proposed ordinance and discussed leasing of public transportation conveyances to drivers; proof of vehicle insurance; carrying or delivering of alcoholic or malt beverages; metered vs. non-metered tracking relative to daily trip sheet requirements, and offering cab companies the option to have a distinctive color scheme (logo) similar to the option provided to limousine and carriage service providers. Mr. Elkins further commented on lack of enforcement of current code and state statutes involving business practices by other cab companies that he felt were in violation of law. Upon inquiry regarding the proposed effective date of the ordinance, if approved, City Clerk Carol Intlekofer stated provisions of the ordinance indicate effectiveness would be upon approval of the ordinance on 3rd and final reading and publication of the ordinance in the local newspaper, which would be some time the week following final approval to allow time to finalize revised business and permit application forms. Reporting for Finance Committee, Mr. Brown moved to approve on third and final reading, seconded by Mr. Valdez. Mr. Brown moved to amend by substitute, seconded by Ms. Broyles. It was advised the substitute includes inserting the words “and public transportation conveyances” in Section 5.72.010, paragraph I., between the words “records” and “relating.” Discussion topics included: Language consistency; vagueness of wording in certain sections; specification of fees relative to criminal or background checks; time frame of applicant disclosure of convictions; language involving reasons for the chief’s disapproval of an application; definition of terms contained in Section 5.72.060 A. 1. and whether the section applied to on-duty as well as off-duty drivers; daily trip sheets and record keeping requirements; taxicab logos and approval of same by the police chief; posting of driver permit with photo within conveyances; fees assessed for transportation services; safety issues and concerns, and clarification of wording in certain sections of the ordinance. Ms. Broyles moved to postpone for 2 weeks, seconded by Mr. Valdez. Dr. Rinne raised a point of order regarding the procedural process involving the motion to amend by substitute vs. the motion to postpone. Upon inquiry regarding the amended substitute language, Dan White, City Attorney, explained the change was made pursuant to discussion and recommendation by the Finance Committee, noting previous changes were also included. Following comments on voting on the proposed substitute prior to the motion to postpone, Mayor Kaysen advised the motion to amend by substitute would be the motion on the floor. Motion carried. Voting “yes” – all members of the governing body with the exception of Ms. Ash, Mr. Brown and Dr. Rinne voting “no.” Mayor Kaysen advised the motion to amend by substitute carried. Pursuant to comments regarding the procedural process, Ms. Broyles withdrew her motion to postpone with concurrence by Mr. Valdez as second to the motion. Mr. Brown requested a point of clarification regarding what motion had been voted upon with Mayor Kaysen stating the motion to amend by substitute was the motion acted upon and approved. Mr. Brown moved to postpone for 2 weeks (to August 9, 2010), seconded by Ms. Broyles. Mr. Elkins spoke in support of postponement and commented on ordinance sections

he felt should be clarified or reviewed for discrepancies. Discussion included enforcement; whether the postponement time frame would be adequate to review issues that had been raised; request to Mr. Elkins to submit written comments for suggested changes, and what would transpire during the postponement time frame regarding further review and potential changes to the ordinance. Mayor Kaysen confirmed the dates/times of Finance Committee and City Council meeting schedules on the ordinance if the postponement was approved. Upon inquiry, Lt. Mark Munari, Police Dept. Patrol Division Commander, provided information on meetings and communications that had been held with public transportation companies and the opportunity for their input regarding the proposed ordinance, stating the ordinance was drafted pursuant to cab companies' request and that their comments had been taken into consideration when drafting the ordinance. He advised he will work with the City Attorney and public transportation companies to further review the ordinance during the postponement time frame. Comment was made on the proposed postponement time frame. Mr. Brown withdrew his motion to postpone for 2 weeks with concurrence by Ms. Broyles as second to the motion. Mr. Brown moved to postpone for 4 weeks, seconded by Mr. Valdez. Mr. Elkins spoke in support of the motion. Mayor Kaysen clarified if the postponement was approved, the item would come before City Council at the August 23, 2010 meeting for referral back to Finance Committee. Motion to postpone (to August 23, 2010) carried. Voting "yes" – all members of the governing body.

"An Ordinance annexing to the City of Cheyenne, Wyoming, a parcel of land being situated in a portion of Tracts 7 and 10, Dell Range Addition, 2nd Filing; Lot 3 Smithson View, together with a portion of Carla Drive, Thomas Road and College Drive, Laramie County, Wyoming (generally located north of and adjacent to Carla Drive, between Ridge Road and College Drive)." Reporting for Public Services Committee, Ms. Ash moved to approve on third and final reading, seconded by Mr. Collins. Motion carried. Voting "yes" – all members of the governing body. (#3901)

"An Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established and Section 17.08.040 Cheyenne City map of the Cheyenne City Code, by changing the zoning classification from P Public District to HR-2 High Density-Residential Developing District for Fincher Block, a replat of Lots 1-8, Block 193, and vacated 16-foot alley contained within said Block 193, Original City, Cheyenne, Wyoming (located between Bradley and Morrie Avenues, and E. 22nd and 23rd Streets)." Ms. Ash moved to approve on second reading, seconded by Mr. Collins. Motion carried. Voting "yes" – all members of the governing body.

"An Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established and Section 17.08.040 Cheyenne city map of the Cheyenne City Code, by changing the zoning classification from P-Public, MR-1-Medium Residential Established and LI-Light Industrial Districts to LI-Light Industrial District for BOPU Subdivision, a replat of portions of Blocks 98, 99, and 151; all of Blocks 149 and 150; and vacated streets and alleyways, Original City, Cheyenne, Wyoming (located at the northwest corner of the intersection of Snyder Avenue and W. 24th Street)." Ms. Ash moved to approve on second reading, seconded by Mr. Collins. Motion carried. Voting "yes" – all members of the governing body.

"An Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established and Section 17.08.040 Cheyenne City map of the Cheyenne City Code, by changing the zoning classification from P Public District to MUR Mixed Use-With Residential Emphasis District for Garey Addition, 2nd Filing, a replat of a portion of Lot 2 and all of Lots 3 and 4, Garey Addition, Cheyenne, Wyoming (located north of and adjacent to W. Fox Farm Road, West of Walterscheid Boulevard)." Ms. Ash moved to approve on second reading, seconded by Mr. Collins. Motion carried. Voting "yes" – all members of the governing body.

[CA] “A Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Cheyenne Business Parkway, First Filing Refinement A, a replat of Lots 10 and 11, Block 1, Cheyenne Business Parkway, First Filing, Cheyenne, Wyoming (located at the northwest corner of the intersection of Echostar Drive and Campstool Road).” Motion (per Consent Agenda) carried. (#5225)

[CA] “A Resolution acknowledging receipt of the Cheyenne Safety Assessment Report prepared by DiExSys LLC for the Cheyenne Metropolitan Planning Organization.” Motion (per Consent Agenda) carried. (#5226)

[CA] “A Resolution authorizing the Mayor to sign a memorandum of understanding with Laramie County to apply for the Edward Byrne Memorial Justice Assistance Grant Program” -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] “A Resolution approving the submittal of an application to the Wyoming Water Development Commission for funding for the Southern Water Transmission Main - Phase II project and authorizing the director of the Board of Public Utilities to execute the application and all related documents” -- referred to Finance Committee (sponsor - Mr. Valdez).

[CA] “A Resolution approving a user water and sewer services agreement between the Board of Public Utilities and the University Corporation for Atmospheric Research.(UCAR)” -- referred to Finance Committee (sponsor - Mr. Valdez).

[CA] “A Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Fincher Block, a replat of Lots 1 thru 8, Block 193, and vacated 16-foot alley contained within said Block 193, Original City, Cheyenne, Wyoming (located between Bradley and Morrie Avenues, and E. 22nd and 23rd Streets)” -- referred to Public Services Committee (sponsor - Ms. Ash).

[CA] “A Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for BOPU Subdivision, a replat of portions of Blocks 98, 99, and 151; all of Blocks 149 and 150; and vacated streets and alleyways, Original City, Cheyenne, Wyoming (located at the northwest corner of the intersection of Snyder Avenue and W. 24th Street)” -- referred to Public Services Committee (sponsor - Ms. Ash).

[CA] “A Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Garey Addition, 2nd Filing, a replat of a portion of Lot 2 and all of Lots 3 and 4, Garey Addition, Cheyenne, Wyoming (located north of and adjacent to W. Fox Farm Road, west of Walterscheid Boulevard)” -- referred to Public Services Committee (sponsor - Ms. Ash).

[CA] “A Resolution authorizing the Mayor and the City Clerk of the City of Cheyenne to execute a memorandum of understanding for the trade of real property owned by the City of Cheyenne to Laramie County School District No. 1, described as two parcels of land which comprised the former Civitan Park, the north half of the right-of-way of Civitan Place, a platted, but unbuilt, street and the right-of-way of a platted, but unbuilt, alley, all of which are located in Arp Addition, 5th filing, generally located south of West Leisher Road between Cribbon and Dey Avenues, together consisting of approximately 45,519 square feet, (estimated value of \$80,000.00) in exchange for real property owned by Laramie County School District No. 1, described as a strip of land approximately 126 ft. in width and approximately 398 ft. in length, consisting of approximately 50,148 square feet (estimated value of \$80,000.00), situated in the eastern part of the Sunrise Elementary School site within Lot 1, Block 1, Sun Alley School addition, Cheyenne, WY, generally

located on the north side of east 12th Street, adjacent to Sun Valley Park” -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] Consideration of FAA Grant #3-56-0005-46 between the City of Cheyenne, the County of Laramie, and the Cheyenne Regional Airport Board for the implementation of a Safety Management System Program (Phase II) and for airport operations. Motion (per Consent Agenda) carried. (#5576)

[CA] Contract between the City of Cheyenne and Laramie County School District No.1 for school resource officers for the 2010-2011 school year -- referred to Finance Committee (due to postponement from 06/28/10).

[CA] Contract between the City of Cheyenne Public Works Sanitation Division and Waste Management Disposal Services of Colorado, Inc. to accept permitted solid waste at the Weld landfill, Ault, CO (Solid Waste fund) -- referred to Finance Committee.

[CA] Contract Modification #1 to Contract #5563 between the City of Cheyenne and JTL Group, Inc. dba Knife River for the construction of the 2009 Cheyenne Transit Program Bus Stop Upgrades Project (Federal Transportation Administration/American Recovery and Reinvestment Act funds). Motion (per Consent Agenda) carried (amount not to exceed \$101,968.90). (#5563)

[CA] Change Order #1 to accepted Bid #R-7-10 between the City of Cheyenne and JDM Equipment, LLC, for an upper hopper extension to the baler conveyor located at the Transfer Station (State Land and Investment Board funds). Motion (per Consent Agenda) carried (amount not to exceed \$6,012.00).

[CA] Consideration of Bid #M-24-10 for a contract between the City of Cheyenne and Colorado Lining International of Parker, CO for the Third Evaporation Pond project at the landfill. Motion (per Consent Agenda) carried (amount not to exceed \$157,824.60). (#5577)

[CA] Consideration of Bid #R-1-11 for furnishing 4 new Medium/Heavy Duty, Body on Chassis Transit Buses for the City of Cheyenne Transit Department, from Intermountain Coach Leasing, Inc., Colorado Springs, CO. Motion (per Consent Agenda) carried (amount not to exceed \$243,500.00).

[CA] Consideration of #Bid R-2-11 for furnishing one new Motor Grader for the City of Cheyenne Street & Alley Division from Honnen Equipment, Casper, WY -- referred to Finance Committee.

Announcement was made of a Calcutta to be held Thursday, August 5, 2010 beginning at 7:00 p.m. at Alf's Pub, 1622 East 19th St., Cheyenne, WY, in conjunction with the Alf's Pub Golf Tournament. Proceeds to benefit the local Multiple Sclerosis Society.

Announcement was made of the appointment of Donald Threewit to the Historic Preservation Board to be confirmed August 9, 2010.

Under other business, Steven Martinez, Bad Ass Tattoo, reviewed meetings, conversations, governing body's hearing process and outcome, and his subsequent appeal request to District Court, which has been dismissed, regarding denial of his body artist business permit. He expressed procedural concerns involving the hearing, and commented on his approval through the County to open a body art establishment outside of City limits. He requested City Council approve issuance

(by means of taking a vote) of his body artist permit to provide services within the City. City Attorney Dan White requested the opportunity to research whether the governing body, under other business at a City Council meeting, has the authority to grant a license based on a procedural posture. Mr. Martinez commented on the Wyoming Administrative Procedure Act and the appeal process. Mr. White stated his belief that there was no prohibition in City Code that would preclude Mr. Martinez from re-applying for a body artist permit. Discussion followed on allowing time for the City Attorney to review issues involved with the request and a reasonable time frame for the attorney's response. Mr. Martinez talked about his financial business hardship, timeliness of a response from the attorney, and potential litigation issues that may affect the City. Comments followed on procedural process; timeliness of legal review; re-application for a permit as an option; whether conditions could be placed on a license, and potential litigation pursuant to comments made by Mr. Martinez. Mayor Kaysen advised the City Attorney would review and provide a response to Mr. Martinez and governing body members by the end of the week (i.e. July 30, 2010).

There being no further business to come before the governing body, Mayor Kaysen adjourned the meeting at 7:10 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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